

political asylum application



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Jun 1, 2026 — **Use this form to apply for asylum in the United States** and for withholding of removal (formerly called “withholding of deportation”).

AI Overview



To apply for political asylum in the United States, you must file [Form I-589 \(Application for Asylum and for Withholding of Removal\)](#) within one year of your last arrival in the country. Asylum Seeker Advocacy Project | ASAP

Filing for asylum can be complex. The appropriate path and application steps depend on your personal circumstances:

1. Determine Your Eligibility and Filing Path

- **Affirmative Asylum:** For individuals who are not currently in removal (deportation) proceedings. You file your application directly with USCIS. USCIS (.gov)
- **Defensive Asylum:** For individuals who are in removal proceedings, or those who have had their affirmative asylum case referred to an Immigration Judge. You file your application with the Executive Office for Immigration Review (EOIR). USCIS (.gov) +1

2. Prepare the Application

- **Form I-589:** Download and complete [Form I-589](#) thoroughly.
- **Personal Statement:** You must attach a detailed written statement describing the persecution you have suffered in your home country or why you have a well-founded fear of future persecution.
- **Evidence:** Include any supporting documentation, such as medical records, police reports, news articles, or affidavits from witnesses. USCIS (.gov) +2

3. Submit and Pay Fees

- **Where to File:** If filing affirmatively, you can use the [USCIS Filing Instructions Tool](#) to determine if you can submit online or must mail the application. Defensive applicants must follow instructions for their specific Immigration Court. USCIS (.gov) +1
- **Filing Fees:** Verify current USCIS fees, as Form I-589 requires a filing fee for most applicants unless a fee waiver is requested and approved.

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- **Biometrics & interview:** After filing, USCIS will schedule a biometrics (fingerprinting) appointment and eventually an asylum interview.
- **Employment Authorization:** You can generally apply for an Employment Authorization Document (EAD) 150 days after your completed asylum application is received, making you eligible to work once the application has been pending for 180 days. USCIS (.gov)

Disclaimer: Immigration law is highly complex. Consulting with a qualified immigration attorney is strongly recommended to ensure your application is properly prepared and filed.



USCIS (.gov)

<https://www.uscis.gov> › refugees-and-asylum › asylum

Asylum | USCIS

May 18, 2026 — To apply for **asylum** affirmatively or defensively, file a Form I-589 within 1 year of your arrival to the United States.

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Asylum Seeker Advocacy Project | ASAP

<https://asaptogether.org> › faqs-asylum-application

Asylum Application and Evidence

Jun 4, 2026 — Generally, if you decide to apply for asylum, you **must submit your application (Form I-589)** within one year of arriving in the United States.



USCIS (.gov)

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Withholding of Removal. Department of Homeland Security.

12 pages

Videos



1:00:28

[The Application for Asylum, Form I-589 - PAPER version](#)

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Nov 26, 2025

Step-by-step guide to completing the US **asylum application** form I-589, including tips, explanations, and information on additional documents.



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American Immigration Council

<https://www.americanimmigrationcouncil.org> › fact-sheet

Asylum in the United States

May 9, 2025 — A person generally must apply for **asylum** within one year of their most recent arrival in the United States.



UNHCR - The UN Refugee Agency

<https://help.unhcr.org> › usa › applying-for-asylum › ty...

Types of Asylum - UNHCR USA

To apply for asylum in the U.S., you **must be physically present in the U.S.** or be seeking entry into the U.S. at a port of entry.



USA.gov

<https://www.usa.gov> › ... › Refugees and asylum

How to seek asylum in the U.S.

Mar 17, 2026 — To seek asylum, you **must already be in the US** and believe you will be in danger of persecution if you return to your country.

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